

24AHCV00056 24AHCV00056

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-08-21

Motion: DEFENDANT 673 E COL PROPERTIES, LLC'S MOTION FOR SUMMARY JUDGMENT

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Case Number: 24AHCV00056 Hearing Date: August 21, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

BENJAMIN STEINBERG,

Plaintiff(s),

vs.

CITY OF
PASADENA, et al.,

Defendant(s).

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CASE NO.: 24AHCv0056

[TENTATIVE]

ORDER RE: DEFENDANT 673 E COL PROPERTIES, LLC'S MOTION FOR
SUMMARY JUDGMENT

Dept.

3

8:30

a.m.

August

21, 2026

I.

INTRODUCTION

Plaintiff

Benjamin Steinberg ("Plaintiff") filed this action on January 10, 2024, and filed the operative First Amended Complaint ("FAC") on April 16, 2025. The FAC asserts causes of action for premises liability and general negligence against 673 E Col Properties, LLC ("Defendant"). On June 25, 2025, Plaintiff filed an amendment naming Defendant as Doe 2.

Defendant

filed this motion for summary judgment on May 28, 2026. Defendant argues it owed no duty to Plaintiff to maintain a tree well or remove a homeless person and their belongings from an adjacent sidewalk. The motion is unopposed.

II.

FACTUAL BACKGROUND

Plaintiff alleges he was walking on the sidewalk when he moved to the right of the sidewalk to avoid trash, debris, and a homeless person in his path. When he moved, he stepped into a tree well that was not level, lost his balance, and fell. (FAC, ¶ 17.)

III.

LEGAL STANDARD

In reviewing a motion for summary judgment, courts must apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent’s claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue.” (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.)

IV.

REQUEST FOR JUDICIAL NOTICE

Defendant’s request for judicial notice of City’s Code of Ordinances is GRANTED.

V.

DISCUSSION

The elements of a negligence and premises liability cause of action are the same: duty, breach, causation, and damages. (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.) Those who own, possess, or control property generally have a duty to exercise ordinary care in managing the property in order to avoid exposing others to an unreasonable risk of harm. (Annocki v. Peterson Enterprises, LLC (2014) 232 Cal.App.4th 32, 37.) “A defendant cannot be held liable for the defective or dangerous condition of property which it did not own, possess, or

control. Where the absence of ownership, possession, or control has been unequivocally established, summary judgment is proper. [Citation.]” (Isaacs v. Huntington Memorial Hospital (1985) 38 Cal.3d 112, 134.) There are exceptions to this general rule where a person has voluntarily assumed a duty to act, either by contract or by his or her actions (Interinsurance Exchange of the Automobile Club of Southern California (2002) 161 Cal.App.3d 571, 575), or where a person creates the danger that causes the harm or increases a foreseeable risk of harm (Vasilenko v. Grace Family Church (2017) 3 Cal.5th 1077, 1081).

Courts have held that in the absence of a statute a landowner is under no duty to maintain in a safe condition a public street abutting upon the landowner’s property unless the landowner created the danger. (See, e.g., Sexton v. Brooks (1952) 39 Cal.2d 153, 157.) “The reason for this rule is that a landowner generally has no right to control another’s property, including streets owned and maintained by the government.” (Vasilenko, supra, 3 Cal.5th at p. 1084.)

Here, it is undisputed that the City of Pasadena (“City”), not Defendant, designed and constructed the tree well. (UMF Nos. 2-3.) City also owned, controlled, maintained the sidewalk and tree well – not Defendant. (UMF Nos. 4, 7.) Defendant never repaired the subject tree well, but City repaired the tree well in 2023 and added dirt to reduce or eliminate the elevation differential between the tree well and the sidewalk. (UMF Nos. 5-6, 11-12.) Defendant also did not own, maintain, or control the public sidewalk and therefore had no duty to keep a homeless man and his belongings off the sidewalk. (UMF Nos. 13-14, 16.) Defendant did not permit or cause any homeless person to occupy the public sidewalk and did not place any trash or debris on the public sidewalk. (UMF Nos. 16, 18.)

Defendant meets its burden to show Plaintiff cannot establish that it owed him a duty to maintain the tree well or keep the sidewalk clear. Plaintiff filed a notice of non-opposition in which he agreed that Defendant did not owe him a duty and no act or omission by Defendant caused his injuries. Accordingly, Plaintiff does not raise a triable issue of material fact and summary judgment is appropriate.

VI. CONCLUSION

Based on the foregoing, Defendant’s motion for summary judgment is GRANTED.

Moving party to give notice.

Dated

this 21st

day of August

2026

William A. Crowfoot

Judge of the Superior Court

Parties who intend to submit on this

tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.